

The Case File on buying your first home

A room-by-room walkthrough of the legal journey behind a property purchase — from your first mortgage document to the day the keys land in your hand. Produced in partnership with C.G. Gilmartin & Co Solicitors.

PREPARED WITH PRACTICE AREA READING TIME
C.G. Gilmartin & Co Residential Property 14 minutes

**C.G. Gilmartin & Co Solicitors**

A general practice law firm based in Clontarf, Dublin 3, providing legal services across Ireland — with a particular focus on residential property.

VISIT CGGILMARTIN.IE →

Whether you're considering a new build or a property on the second-hand market, buying your first home comes with a sequence of practicalities that rarely gets explained end to end. This is that sequence — the finance, the offer, the contracts, and everything after — set out step by step by the solicitors who handle it every day.

01 Finance

The first decision is how you'll pay for the property — cash, or a residential mortgage. Most buyers take the mortgage route, so here's what that involves.

If you're proceeding by mortgage, you'll engage a broker or approach a lender directly. Either way, you'll be asked for a standard set of documents — and if you already bank with the lender in question, the process is usually more streamlined, since they can pull your account history without you having to order fresh statements.

WHAT YOUR LENDER WILL ASK FOR

- ID — passport or driver's licence
- Bank statements, usually 6 months
- Proof of address
- Salary certs, usually 3 months

As part of the application, you'll consent to an ICB check, allowing the bank to review your credit history with the Irish Credit Bureau. Once everything is submitted and assessed, your lender may issue an **Approval in Principle (AIP)** — an indicative figure that selling agents will often ask to see before you enter a bidding process.

Government schemes worth exploring

**DEPOSIT SUPPORT**

Help to Buy Scheme

A tax rebate of up to 10% of the purchase price (max €30,000) toward your deposit on a new build or self-build, up to €500,000. Requires first-time buyer status, minimum 70% LTV, and 5 years as your primary residence.

revenue.ie →

**SHARED EQUITY**

First Home Scheme

Bridges the gap between your deposit, mortgage and price on a new build. Government can contribute up to 30% of value (20% if combined with Help to Buy). No repayments on their share for 5 years.

firsthomescheme.ie →

**LOCAL AUTHORITY**

Local Authority Home Loan

A government-backed mortgage available through local authorities, for new-build, second-hand, and self-build properties.

localauthorityhomeloan.ie →

02 Choose Your Property

Once you've identified the property, you'll liaise with the selling agent to place an offer — but in a competitive market, it pays to know your ceiling before you bid.

It's easy to form an attachment to a property mid-bid. Before that happens, weigh up the full cost of purchase against the price on the listing:

COSTS TO WEIGH BEFORE YOU SET YOUR CEILING	
01	Purchase price
02	Surveyor fees
03	Property valuation fees (if mortgaged)
04	Searches
05	Local Property Tax
06	Service charges (if applicable)
07	Stamp duty
08	Registration fees
09	Solicitors fees
10	Renovation works
11	Furniture and sundries

If you're buying new

Search portals like Daft.ie or MyHome.ie, and search "new developments [your area]" — many developers run dedicated sites for their schemes. Look into the developer's previous projects and any reviews, and register for email alerts on new phases or releases.

Visit the **show home** to get a feel for layout and finish, and ask specifically what's included in the price versus what counts as an extra. Developers also release homes in **phases**, each with an estimated completion date that's frequently subject to revision — and if the home isn't built yet, you're buying "off plans," so request the site plans, floor plans and specifications, and treat marketing measurements as indicative rather than final.

03 Making an Offer & Securing the Property

From an accepted offer to a signed contract, four things need to happen in sequence.

01 Offer and booking deposit

Once your offer is accepted, you'll typically pay a non-refundable booking deposit — up to €10,000 — to secure the property at the agreed price until contracts are signed. Once paid, the property is considered "sale agreed."

02 Appointing a solicitor

The sales agent will request your solicitor's details in order to generate the Sales Advice Note, which the vendor's solicitor uses to issue contracts.

03 Loan approval (full offer)

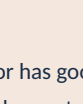
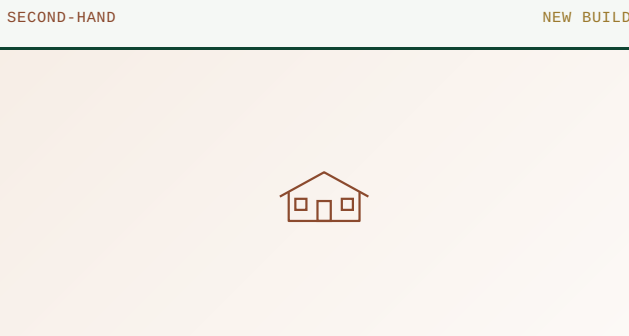
Your lender arranges a valuation of the property to confirm its value aligns with the mortgage amount — this report must be no more than four months old at drawdown. Once complete, a formal loan offer and loan pack issues to you and your solicitor.

04 Planning enquiries

Your solicitor carries out planning searches, surfacing everything on the local authority's planning file for the property, future phases of its development, surrounding developments, and local authority works.

WHERE THE ROAD SPLITS

From here, the path depends on what you're buying



SECOND-HAND Buying an existing home

CONTRACT FOR SALE

Your solicitor examines the contracts and title deeds to confirm the vendor has good marketable title, and checks for unreasonable special conditions. They'll also negotiate in any conditions you need — for example, making the contract conditional on you securing mortgage approval.

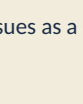
Your surveyor should walk through the property to flag defects, from cosmetic issues to damp or water ingress, and pass that report to your solicitor early enough to raise queries — boundary lines, undisclosed works — before contracts are exchanged.

Once you're satisfied, you'll sign contracts and the mortgage documents, and your solicitor returns them with the balance deposit (usually 10% of the price, less the booking deposit already paid). Once the vendor countersigns and the deposit is accepted, you're in a binding agreement with an equitable interest in the property — worth insuring from this date.

COMPLETION

The closing date in the contract is indicative rather than guaranteed. Your solicitor will send a completion statement setting out the balance funds needed — purchase price less mortgage, stamp duty, registration fees, third-party outlays and their own fees — all required before they can complete.

Loan drawdown is usually requested 2–3 days ahead of closing, and that drawdown date is what triggers your first mortgage repayment, depending on your lender's repayment mandate date.



NEW BUILD Buying off plans or newly built

CONTRACTS FOR SALE

New build conveyancing runs on tighter deadlines — typically 21–28 days from reservation to exchange. If you've agreed an extension with the developer, flag it to your solicitor early so everyone's aligned. The contract usually issues as a Combined Building Agreement / Contract for Sale, covering both the site and the construction of the house on it.

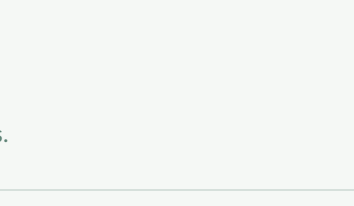
You'll usually pay the remaining balance of your 10% deposit on signing (the booking deposit counts toward this), and many developer-side solicitors are instructed to accept Help to Buy funds toward that deposit. Once exchanged, you're legally bound — unless your solicitor has built in a loan approval clause allowing you to walk away, deposit returned, if mortgage approval or lender conditions can't be met.

CONSTRUCTION, SNAGGING & COMPLETION

The developer provides an estimated completion date — material shortages and weather can shift it. Once notified the property is ready, you typically have 7–14 days for a professional snag list survey (the exact window is set in the Building Agreement).

Your surveyor's walkthrough should catch everything from scratched windows to damp or water ingress. Miss the window, and you're obliged to close regardless of any defects found later — so a thorough snag list matters more than the developer's obligation to fix issues after the fact.

As with second-hand purchases, your solicitor will issue a completion statement and coordinate loan drawdown 2–3 days ahead of the closing date.



BOTH PATHS MEET AGAIN HERE

04 Closing

The final exchange — funds, documents, and keys.

Once your solicitor has the loan monies and your balance completion funds, they'll transfer the purchase price — plus any LPT or service charge apportionments — to the vendor's solicitor in trust. In return, the completion documents move to your solicitor, pending completion.

A final inspection is usually arranged the day before or day of closing, confirming nothing's changed since your viewing and that the property is vacant and in good order. From there, your solicitor raises closing searches against the vendor, you, and the property itself — third-party checks confirming the vendor isn't bankrupt or insolvent, and that no judgments or undisclosed mortgages sit against the property. A further planning search may also run at this point.

Once those searches come back clear, your solicitor confirms the sale is complete, funds release to the vendor, and the vendor's solicitor confirms keys can be released to you.

Congratulations — you've just purchased a property.

05 Post-Completion

The paperwork doesn't quite end at the keys. Three things still need to happen behind the scenes.

TAX

Stamp Duty

Currently 1% of the purchase price up to €1m, 2% between €1m–€1.5m, and 6% above that, on residential property under an acre. Revenue allows 14 days to file the return before interest and penalties apply — your solicitor pays it online and receives a stamp certificate confirming payment.

LAND REGISTRY

Registration

Your solicitor registers your ownership, mortgage and any other charges, rights of way or easements with *Taite Éireann* once your deed is stamped. Timelines vary depending on whether the property is already registered or subject to First Registration.

SAFEKEEPING

Your Deeds

Cash purchasers arrange safekeeping directly. Mortgaged purchasers have their deeds and Certificate of Title held by the lender until the mortgage is repaid — or your solicitor can apply to take them up on Accountable Trust Receipt (typically €63–150 in lender admin fees).